

SUPPLIER AGREEMENT

Contract Reference: CTR-9A44D9-2025

Effective Date: 1 January 2025 | Expiry Date: 31 December 2025

1. PARTIES

This agreement is entered into between Frostbyte Enterprises Pty Ltd (ABN 12 345 678 901), hereinafter referred to as "the Buyer", and Avalanche Gear Co (Supplier ID: SUP_73D80C9A44D9), hereinafter referred to as "the Supplier".

2. PRODUCT CATEGORIES

The Supplier agrees to provide goods in the following categories: Helmets & Goggles, Accessories. All products must meet Frostbyte quality standards as defined in Appendix A.

3. COMMERCIAL TERMS

Payment Terms: 2/10 Net 30

Unit Price Adjustment: Fixed for contract term

Volume Discount: 3% discount on orders exceeding 100 units

Minimum Order Quantity: 100 units per purchase order

4. SERVICE LEVEL AGREEMENT (SLA)

Maximum Lead Time: 7 calendar days from purchase order confirmation

On-Time Delivery Target: 95% of all shipments delivered within the agreed lead time

Maximum Defect Rate: 1.0% of delivered units may be defective or non-conforming

Order Cancellation Limit: Supplier-initiated cancellations must not exceed 5% of total orders per quarter

5. PENALTIES & REMEDIES

In the event of SLA non-compliance, the following penalty applies: 5% discount on next order for each SLA breach. Repeated breaches (3 or more in a rolling quarter) may result in contract review or termination with 30 days written notice.

6. GOVERNING LAW

This agreement is governed by the laws of New South Wales, Australia. Any disputes shall be resolved through mediation before escalating to arbitration.

For and on behalf of the Buyer:

For and on behalf of the Supplier:

Frostbyte Enterprises Pty Ltd

Avalanche Gear Co